The Question Method

Quick Tips & Research Checklists

> **The whole method in one breath:** ask one question, find the answer, write it down, and let that answer tell you what to ask next. Repeat until no substantive question remains. The *question*, not the database, drives the research.

QUICK TIPS

Ask from where your knowledge actually is. Every question should be one you could write with only what you know right now. If it needs a term you have not found yet, a question is missing before it.

No vocabulary? Get it first. A plain-language or general search whose only job is to surface the terms of art is a legitimate first step. A doctrine's name is something research *delivers*, not something you assume.

Keep each answer scoped to its question. Record only what your question asked, even when the source says more. The rest becomes later questions.

Let relevance emerge. You cannot know which facts matter until you know what the law requires. Note a fact once research shows it bears on the rule.

Go down or go sideways. After each answer, either deepen (a narrower sub-question on the same thread) or move laterally to the next factor or element. A sub-question never comes before the question it narrows; sibling factors can go in any order.

Don't skip steps you can't yet see. Experts compress. You are building the habit, so draft *every* question, even the obvious ones. Hands at 10 and 2 now; shortcuts later.

Watch for the precision trap. A result can be in the right area and still answer the wrong question. A precise question lets you set it aside with confidence.

NAME YOUR QUESTION TYPE

Naming the type tells you where to look and roughly how far along you are. The types are a diagnostic, not a fixed sequence; expect to loop back.

Type	It asks…	Where to look
Definitional	What does this word or phrase mean?	Legal dictionary for orientation; statute definitions section, regulation, or case law when the definition is load-bearing.
Exploratory	What does the legal landscape look like?	No-clue: encyclopedia or general search. Foundational: treatise. Survey: ALR, Restatements, 50-state surveys.
Focusing	What is the specific rule, standard, or test?	Primary authority: the statute, regulation, or case that states the rule. Expect sub-rules one level deeper.
Application	How does the rule work on these facts?	Fact-finding: cases with facts like yours. Constructive: build the rule from several sources by analogy.

CHECKLIST 1: BEFORE YOU SEARCH (START PROTOCOL)

- ☐ **Clarify the assignment.** Scope, jurisdiction, deadline, resources, expected format and depth, and anything you were told to avoid.
- ☐ **Write the macro question** in one sentence at the top of your Research Log.
- ☐ **Review the file.** Capture facts that help you now and the legal terms (statute names, claim types) that can seed your searches.
- ☐ **Self-diagnose your knowledge.** No vocabulary: acquire it first. No grip on the area: start exploratory. Enough grip to ask a concrete question: start focusing.
- ☐ **Draft your first question** and write it down. That is your first cycle.

CHECKLIST 2: EVERY RESEARCH CYCLE

- ☐ **Step 1. Write your research question.** One micro question, specific, in the words you currently have.
- ☐ **Name the question type** (definitional, exploratory, focusing, application).
- ☐ **Step 2. Research to answer it.** Choose the source most likely to answer *this type* of question. Search. Read.
- ☐ **Step 3. Write down what you found.** Log the source, what it said in your own words, and whether it fully answers, partially answers, or redirects.
- ☐ **Move the synthesized answer** into the right section of your annotated outline.
- ☐ **Step 4. Identify your next question** from the answer you just recorded, not from imagination. Note any facts that just became relevant.
- ☐ **Checkpoint: reflect and evaluate.** Is this source current, authoritative, and from the right jurisdiction? Is the answer sufficient? Am I still on the macro question, or chasing a tangent?
- ☐ **Step 5. Repeat** until no substantive question remains.

CHECKLIST 3: CLOSING OUT

The closing-out protocol is the cycle's Checkpoint run at full scale. Where the checkpoint asks whether one answer was sufficient, closing out asks whether the whole project is.

- ☐ **Run a final sweep.** At least one search with different terms than the ones that produced your best results.
- ☐ **Search for adverse authority.** At least one search aimed deliberately at authority that cuts against your position (Model Rule 3.3). Log it even if nothing new turns up; that nothing is evidence.
- ☐ **Update every case.** Run KeyCite or Shepard's on each case you plan to cite and check for negative treatment in your jurisdiction.
- ☐ **Read before you cite.** Confirm each authority supports the specific proposition you cite it for. Never cite what you have not read.
- ☐ **Update every statute.** Check for pending amendments and recent session laws.
- ☐ **Update every regulation.** Check the eCFR effective date and the List of CFR Sections Affected (LSA).
- ☐ **Evaluate the outline for gaps.** Every legal proposition rests on primary authority; every ambiguous term has a source addressing it. Name each gap as either a remaining question or genuine legal uncertainty.
- ☐ **Document the closure decision.** Record the databases searched, final search strings, the dates you verified authorities, any open questions, and whether you reached analytical or practical closure.

KNOWING WHEN YOU'RE DONE

Analytical closure: you have the governing rule, can apply it to your facts, have addressed the counterarguments, and more research would only change your wording, not your analysis.

Practical closure: an external limit (deadline, budget, instruction) forces a stop. Document where you are, what remains, and what you would do next. Running out of time through poor planning is not practical closure.

Done usually means done for now. Drafting will surface gaps you could not see earlier. That is the cycle working, not research failing.

> **The test:** *If you cannot document why you stopped, you have not closed. You have just stopped.*